

25STLC01954 25STLC01954

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-09-24

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Case Number: 25STLC01954 Hearing Date: September 24, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Interinsurance Exchange of the Automobile Club's

Motion to Compel Defendant's Responses to Form Interrogatories, Set One;

Request for Monetary Sanctions, is granted in part, and denied in part.

Defendant Gabriela Julia Gomez is to serve verified responses to the interrogatories without objections, within 20 days' service of this order. Plaintiff's request for an award of sanctions is denied.

Analysis:

On June 25, 2026, Plaintiff Interinsurance Exchange of the Automobile Club ("Plaintiff") served Form Interrogatories, Set One, on Defendant Gabriela Julia Gomez ("Defendant"). (Motion, Tapper Decl., ¶3 and Exh. A.) As of Plaintiff's filing of the instant Motion to Compel Responses to Form Interrogatories, Set One; Request for Monetary Sanctions on August 21, 2026, Defendant had not served responses. (Id. at ¶¶4-6 and Exh. C-D.) Plaintiff now moves to compel Defendant's responses to the interrogatories pursuant to Code of Civil Procedure section 2030.290. There is no requirement for a prior meet-and-confer effort before a motion to compel initial responses can be filed. (Code Civ. Proc., § 2030.290.) Further, the motion can be brought at any time after the responding party fails to provide the responses. (Code Civ. Proc., § 2030.290.) Based on Defendant's failure to respond, Plaintiff is entitled to an order compelling code-compliant responses without objections.

Plaintiff also moves for an award of sanctions under Code of Civil Procedure section 2030.290, subdivision (c), which provides for sanctions

if a party unsuccessfully makes or opposes a motion to compel responses without reasonable justification. (See Code Civ. Proc., § 2030.290, subd. (c) ["The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust."].)

Plaintiff mischaracterizes the statute as mandating sanctions when a party fails to respond to interrogatories, unless the Court finds the failure was substantially justified or that other circumstances make the imposition of the sanction unjust, without reference to whether an unsuccessful motion or opposition were filed. (See Motion, p. 4:6-9.) To be clear, Section 2030.290 does not authorize sanctions because Defendant did not file an opposition to the instant Motion. The citation should be corrected in any future filings.

Conclusion

Plaintiff Interinsurance Exchange of the Automobile Club's Motion to Compel Defendant's Responses to Form Interrogatories, Set One; Request for Monetary Sanctions, is granted in part, and denied in part.

Defendant Gabriela Julia Gomez is to serve verified responses to the interrogatories without objections, within 20 days' service of this order. Plaintiff's request for an award of sanctions is denied.

Moving party to give notice.